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4.9 GHz Public Safety Band: Competing Views on Use

During the terrorist attacks on September 11, 2001, public safety agencies could not communicate, partly because the high volume of calls exceeded the capacity of their radio systems. The 9/11 Commission, which investigated the attacks, called for more spectrum for public safety use. In 2002, the Federal Communications Commission (FCC), which manages nonfederal spectrum use, allocated the 4.9 gigahertz (GHz) band for state and local public safety use and granted licenses to local agencies to use the band.

In 2018, the FCC found that the 4.9 GHz band was underused. In 2020, the FCC adopted final rules to open the band for other uses, including non-public safety use. Three public safety organizations asked the FCC to stay, reconsider, and vacate the rules; in 2021, the FCC stayed and reconsidered the rules. In 2024, the FCC adopted final rules for the band that would preserve local public safety use and select a Band Manager to (1) enter into an agreement with the First Responder Network Authority (FirstNet Authority) to use any unassigned frequencies in the 4.9 GHz band and (2) coordinate band use. The FirstNet Authority, established in P.L. 112-96 (2012), is an independent authority in the National Telecommunications and Information Administration that operates, with AT&T, the FirstNet Network, a nationwide public safety network in a different band.

Some public safety groups supported the FCC rules, asserting that they could spur innovation in the band. Others opposed the rules, including some incumbent public safety users, critical infrastructure industry (CII) operators seeking access to spectrum, and wireless providers (e.g., Verizon, T-Mobile), contending that the rules may yield a windfall to AT&T and curb competition. Various organizations brought legal challenges to the final rules. The U.S. Court of Appeals for the D.C. Circuit dismissed those challenges on July 21, 2026. Following the court's decision, the FCC is moving forward on Band Manager selection.

Congress may consider 4.9 GHz band use, for instance, as it considers reauthorization of the FirstNet Authority, which is expiring on February 22, 2027.

Background

Typically, the FCC grants licenses to public safety agencies to transmit on certain frequencies from specified locations. Licenses authorizing 4.9 GHz band use give state and local public safety agencies (1) blanket authority to operate base stations, mobile (handheld) units, and temporary stations anywhere within their jurisdiction for ad hoc networks during emergencies and (2) ability to license fixed stations on specified channels to support broadband uses, such as high-speed data and mobile use, access to public safety databases from vehicle-mounted laptops, video use, and backhaul (i.e., use of wireless links to transport data).

Prior to 2018, the FCC granted licenses to state and local public safety agencies to use the 4.9 GHz band. Secondary users—transit agencies, utilities, CII operators, and federal agencies assisting public safety and homeland security missions—could enter into sharing agreements with licensees to use the spectrum. This approach has allowed some state and local public safety agencies to establish communication systems for emergency response, when and where needed, and to meet unique state and local needs.

In 2018, the FCC reported that of the 90,000 public safety agencies eligible for 4.9 GHz licenses, 3,174 were using them. The FCC also found that band use was fragmented, meaning entities were using the band in different ways, preventing economies of scale and leading to high equipment costs, limited choices of equipment, and limited band use.

2020: 4.9 GHz Band Rules Adopted

On September 8, 2020, the FCC froze any new or modified applications in the 4.9 GHz band. On September 30, 2020, the FCC adopted final rules for the 4.9 GHz band, granting states the right to lease the unassigned spectrum in the band to state and local entities and to non-public safety entities, with protections for incumbent public safety users.

2020: Petitions Filed

In December 2020, three public safety organizations filed petitions with the FCC to stay, reconsider, and vacate the rules, as noted. The Public Safety Spectrum Alliance (PSSA), a coalition of public safety officials and organizations, opposed state control and commercial leasing and urged the FCC to preserve the band for public safety. The Association of Public-Safety Communications Officials (APCO) argued against state control, where each state could adopt different rules; APCO supported a national-level framework and consistent rules to create economies of scale, spur vendor investment, and yield new technologies in the band. The National Public Safety Telecommunications Council, a federation of 16 public safety groups, argued that state control of the band could affect local, flexible use and cause interference in the band and that the freeze could limit the rights of local licensees to expand systems and coverage, an issue the September 2020 final rules intended to fix.

2021: The FCC Reconsiders the Rules

On September 30, 2021, the FCC granted the petitions to stay and reconsider the 2020 rules. It found that the rules were not in the public interest and also partially lifted the freeze on new or modified applications.

2023: New 4.9 GHz Rules

On January 18, 2023, the FCC adopted rules that would allow local public safety agencies to retain control of

spectrum, appoint a Band Manager to develop a nationwide plan for the unassigned frequencies, and empower the Band Manager to coordinate public safety and non-public safety band use, with preemptions for public safety. The FCC also sought input on Band Manager roles and responsibilities.

2023-2024 Comments on FCC Rules

The FCC received an array of comments on the January 18, 2023, proceeding. Selected positions are discussed below.

Support for FirstNet as a Nationwide Licensee

PSSA urged the FCC to create a single licensee to manage the 4.9 GHz band, create nationwide rules for the band, coordinate band use, and lease spectrum to secondary users. PSSA suggested that the FCC adopt an approach similar to that used for FirstNet. The FirstNet Authority is the licensee for spectrum in the 700 MHz band that it uses to operate the FirstNet Network. Supporters say making spectrum available for nationwide use has spurred development of an ecosystem of advanced public safety equipment in the 700 MHz band. The FirstNet Authority said it could develop new technologies for public safety use in the 4.9 GHz band and protect local public safety use. PSSA and others urged the FCC to grant the FirstNet Authority a license for the 4.9 GHz band or appoint a Band Manager to lease the spectrum to FirstNet.

Opposition to FirstNet as a Nationwide Licensee

The Coalition for Emergency Response and Critical Infrastructure (CERCI), representing several public safety associations, industry and utilities groups, and wireless service providers, including Verizon (a competing public safety service provider), opposed PSSA's proposal. CERCI argued for local control on band use and leasing decisions. The American Association of State Highway and Transportation Officials and the 4.9 GHz Coalition, which includes the American Petroleum Institute, the Utilities Technology Council, and the National Sheriffs' Association (NSA), joined CERCI in opposing licensing or leasing of the band to the FirstNet Authority; it advocated for CII use. Verizon argued that granting 50 megahertz of spectrum with an estimated value of \$14 billion would yield a windfall for AT&T and disrupt the public safety market; it called for an auction of the band. CERCI argued that P.L. 112-96 authorized the FCC to grant the FirstNet Authority use of the 700 MHz band but not the 4.9 GHz band.

Some state and local public safety agencies (e.g., Michigan, Florida, Boston, Illinois) opposed the PSSA plan, citing a loss of local control during emergencies and loss of ability to expand services in their areas. One state agency noted that coverage varies across areas, and agencies may use networks other than the FirstNet Network, raising questions as to whether granting the 4.9 GHz band to AT&T would benefit all or affect competition. The NSA expressed concern about loss of local control and "a nationalized process controlled by a central authority that can only provide a limited set of basic, [vendor-specific] products to choose from." CERCI voiced concerns about consolidating services under one network.

Some CII operators asked the FCC to limit secondary use to CII use, prioritize CII use over non-public safety use, and

permit new technologies in the band (e.g., unmanned aerial vehicles, or UAS). Some also questioned whether the FirstNet Authority needs more spectrum.

2024: Final Rules and Response

On October 18, 2024, the FCC adopted rules authorizing the Band Manager to apply for a nationwide license for the unassigned 4.9 GHz spectrum, enter into an agreement with the FirstNet Authority so it can use the band for the FirstNet Network, develop new technologies, and coordinate existing and new uses. The FCC required licensees to provide data on their current sites and operations by June 9, 2025, or risk license cancellation. The data are to aid the Band Manager in identifying available spectrum, coordinating spectrum use, and protecting incumbent users from interference.

Six organizations challenged the FCC's rules in court. Some of these organizations, including the PSSA, sought refinements to the rules and asked the court to remand the rules to the FCC. Another group, which included CERCI and the NSA, asked the court to vacate the rules. These challenges were consolidated into one proceeding (Case No. 24-1363). On July 21, 2026, the D.C. Circuit decided that the first group lacked standing and denied the petitions of the second group based on the merits.

In addition, in February 2025, APCO filed a petition with the FCC, asking it to modify its rules (e.g., increase power levels) to enable 5G use in the 4.9 GHz band. AT&T, Ericsson, and some public safety entities support the change in rules. CERCI raised issues of potential interference from high-powered 5G use to public safety systems and recommended that the FCC conclude the data collection from licensees, establish criteria for protecting incumbent public safety licensees prior to introducing 5G services, and adopt rules for whether and how a Band Manager should mediate disputes between public safety and FirstNet users.

Issues for Congress

The 4.9 GHz debate centers on competing priorities: maximizing spectrum use, preserving public safety use, supporting new technologies, and promoting competition. As Congress considers legislation to reauthorize FirstNet or other spectrum-related legislation, it may reexamine 4.9 GHz use. Options for Congress include the following:

- Codify the FCC's 2024 rules, maintaining state and local public safety use and granting the FirstNet Authority access to the band. This may spur innovation but restrict future use by public safety and other users.
- Override the FCC's 2024 rules, directing the FCC to return control to local public safety agencies; this could enable flexible use but may result in underutilization.
- Modify the FCC rules to support sharing in the band, which could open the band for new uses, such as UAS or CII, but may also infringe on public safety use.
- Auction the unassigned spectrum, which could spur innovation and yield proceeds; however, auctions take time, which could limit spectrum use in the meantime.

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